

Courtroom Clerk's Session
Add On 2

22. 9:00 AM CASE NUMBER: C25-03412
CASE NAME: BRIAN SWANSON VS. CITY OF SAN RAMON
***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference trials the hearing on the demurrer calendared for Line 23. The Parties are ordered to appear via zoom. If the tentative ruling for line 23 is not contested, then no appearance is required on April 22, 2026 and this CMC is continued to October 20, 2026 at 8:30 a.m. The Parties are ordered to file a case management conference statement and to appear via Zoom.

Law & Motion
Add On 2

23. 9:00 AM CASE NUMBER: C25-03412
CASE NAME: BRIAN SWANSON VS. CITY OF SAN RAMON
HEARING ON DEMURRER TO: RE FIRST AMENDED VERIFIED PETITION FOR WRIT OF MANDATE

FILED BY:

TENTATIVE RULING:

Before the Court is a demurrer filed by real parties in interest KB Home South Bay, Inc. and Trumark Homes to the first amended verified petition for writ of mandate. Respondent City of San Ramon filed and served a joinder in the demurrer by the real parties in interest on January 27, 2026, and the hearing on the joinder was set for August 12, 2026. The Court hereby **advances** the hearing on the City's joinder to be heard concurrently with the demurrer. For the reasons set forth, the demurrer by real parties in interest and the joinder by Respondent City motion are **overruled**.

Background

In the operative first amended verified petition for writ of mandate ("FAP"), petitioner Brian Swanson, AIPC, challenges approvals by the Planning Commission for the City of San Ramon of amendments regarding amendments to two development projects. First, on October 21, 2025, the Planning Commission adopted Resolution Number 12-25 to approve applications by Trumark for a Development Plan Amendment (DPA 2025-0005) and Minor Exception (MX 2025-0003) for the Bishop Ranch 11 ("BR-11") Project. (FAP, ¶¶ 1, 25, Exh. A-1.) Second, on November 4, 2025, the Planning Commission adopted Resolution Number 14-25 to approve applications by KB Home for a Development Plan Amendment (DPA 2025-0007) and Minor Exception (MX 2025-0005) for the